

26TRCV00087 26TRCV00087

County: los-angeles

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Case Number: 26TRCV00087 Hearing Date: September 3, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

TANAZ FARZAD

;

Plaintiff,

vs.

VOLKSWAGEN GROUP OF
AMERICA, INC.

;

Defendant.

Case

No.:

26TRCV00087

Hearing

Date:

September
3, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF TANAZ FARZAD'S MOTION TO COMPEL FURTHER RESPONSES
TO PLAINTIFF'S FIRST SET OF FORM INTERROGATORIES

(2)

PLAINTIFF

TANAZ FARZAD'S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S FIRST SET OF
SPECIAL INTERROGATORIES

(3)

PLAINTIFF

TANAZ FARZAD'S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S FIRST SET OF
REQUESTS FOR PRODUCTION OF DOCUMENTS

(4)

PLAINTIFF

TANAZ FARZAD'S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S FIRST SET OF
REQUESTS FOR ADMISSION

(5)

PLAINTIFF

TANAZ FARZAD'S REQUESTS FOR MONETARY SANCTIONS

MOVING PARTY: Plaintiff, Tanaz Farzad

RESPONDING

PARTY: Defendant, Volkswagen Group
of America, Inc.

(1)

Plaintiff

Tanaz Farzad's Motion to Compel Further Responses to Plaintiff's First Set of Form Interrogatories is DENIED pursuant to Code of Civil Procedure section 2030.300, subdivision (b)(1).

(2)

Plaintiff

Tanaz Farzad's Motion to Compel Further Responses to Plaintiff's First Set of Special Interrogatories is DENIED pursuant to Code of Civil Procedure section 2030.300, subdivision (b)(1).

(3)

Plaintiff

Tanaz Farzad's Motion to Compel Further Responses to Plaintiff's First Set of Requests for Production of Documents is DENIED pursuant to Code of Civil Procedure section 2031.310, subdivision (b)(2).

(4)

Plaintiff

Tanaz Farzad's Motion to Compel Further Responses to Plaintiff's First Set of Requests for Admission is DENIED pursuant to Code of Civil Procedure section 2033.290, subdivision (b)(1).

(5)

Plaintiff

Tanaz Farzad's Requests for Monetary Sanctions are DENIED pursuant to Code of Civil Procedure sections 2030.300, subdivision (b)(1), 2031.310, subdivision (b)(2), and 2033.290, subdivision (b)(1).

The Court considers the moving papers filed on May 28, 2026, the opposition briefs filed on August 21, 2026, and the reply brief filed on August 27, 2026.

BACKGROUND

Factual Background

On January 9, 2026, plaintiffs

Tanaz Farzad and Joe Bruna (collectively, "Plaintiffs") filed the Complaint against defendant Volkswagen Group of America, Inc. ("Defendant") and DOES 1 through 10. The Complaint includes one cause of action for (1) Violation of Song-Beverly Act – Breach of Express Warranty.

On March 9, 2026, Farzad served Defendant with the following discovery requests: (1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; (3) Requests for Production of Documents, Set One; and (4) Requests for Admission, Set One. (Declaration of Phil A. Thomas re: FROG ("FROG Thomas Decl."), ¶ 6, Exh. B; Declaration of Phil A. Thomas re: SROG ("SROG Thomas Decl."), ¶ 6, Exh. B; Declaration of Phil A. Thomas re: RPD ("RPD Thomas Decl."), ¶ 6, Exh. B; Declaration of Phil A. Thomas re: RFA ("RFA Thomas Decl."), ¶ 6, Exh. B.)

On April 10, 2026, at 2:33 p.m., Defendant's counsel emailed Farzad's counsel to request an extension to serve the discovery responses, citing difficulties in obtaining the necessary verifications. (FROG Thomas Decl., ¶ 8, Exh. C; SROG Thomas Decl., ¶ 8, Exh. C; RPD Thomas Decl., ¶ 8, Exh. C; RFA Thomas Decl., ¶ 8, Exh. C.) At 4:50 p.m., Defendant's counsel sent a follow-up email regarding the extension request. (FROG Thomas Decl., Exh. C; SROG Thomas Decl., Exh. C; RPD Thomas Decl., Exh. C; RFA Thomas Decl., Exh. C.) After receiving no response from Farzad's counsel, Defendant proceeded to serve its discovery responses, which consisted solely of objections. (FROG Thomas Decl., ¶ 9, Exhs. D-E; SROG Thomas Decl., ¶ 9, Exhs. D-E; RPD Thomas Decl., ¶ 9, Exhs. D-E; RFA Thomas Decl., ¶ 9, Exhs. D-E.)

On April 17, 2026, Farzad's counsel sent an email to Defendant's counsel stating, "Please advise if/when substantive responses can be expected." (FROG Thomas Decl., ¶ 10, Exh. D; SROG Thomas Decl., ¶ 10, Exh. D; RPD Thomas Decl., ¶ 10, Exh. D; RFA Thomas Decl., ¶ 10, Exh. D.) Defendant's counsel did not respond. (FROG Thomas Decl., ¶ 10; SROG Thomas Decl., ¶ 10; RPD Thomas Decl., ¶ 10; RFA Thomas Decl., ¶ 10.)

On May 15, 2026, Farzad's counsel followed up with another email to Defendant's counsel, inquiring, "Following up re substantive responses." (FROG Thomas

Decl., ¶ 10, Exh. D; SROG Thomas Decl., ¶ 10, Exh. D; RPD Thomas Decl., ¶ 10, Exh. D; RFA Thomas Decl., ¶ 10, Exh. D.)
Defendant's counsel did not respond.
(FROG Thomas Decl., ¶ 10; SROG Thomas Decl., ¶ 10; RPD Thomas Decl., ¶ 10; RFA Thomas Decl., ¶ 10.)

On August 21, 2026, Defendant served amended responses to the discovery requests. (Declaration of Arya Shirani re: FROG ("FROG Shirani Decl."), ¶ 9, Exh. B; Declaration of Arya Shirani re: SROG ("SROG Shirani Decl."), ¶ 9, Exh. B; Declaration of Arya Shirani re: RPD ("RPD Shirani Decl."), ¶ 9, Exh. B; Declaration of Arya Shirani re: RFA ("RFA Shirani Decl."), ¶ 9, Exh. B.)

Procedural Background

On May 28, 2026, Farzad filed these motions. On August 21, 2026, Defendant filed opposition briefs. On August 27, 2026, Farzad filed an omnibus reply brief.

LEGAL STANDARDS

Code of Civil Procedure

section 2030.300 provides that "[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that" the responses contain: (1) answers that are evasive or incomplete; (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response; or (3) unmerited or overly generalized objections.

(Code Civ. Proc., §2030.300, subd. (a).) "[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories." (Code Civ. Proc., §2030.300, subd. (c).) Moreover, "[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., §2030.300, subd. (b)(1).)

Additionally, “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Proc., § 2017.010.) For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover, “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

California law requires a responding party to respond to each propounded request for admission with either a substantive answer or an objection to the particular request. (Code Civ. Proc., § 2033.210, subd. (b).) Each substantive answer must: “(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party; (2) Deny so much of the matter involved in the request as is untrue; [or] (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.” (Code Civ. Proc., § 2033.220, subd. (b).) “If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc., § 2033.220, subd. (c).)

Code of Civil Procedure section 2033.290, subdivision (a), provides that “[o]n receipt of responses to requests for admission, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete; and] (2) An objection to a particular request is without merit or too general.”

(Code Civ. Proc., § 2033.290, subd. (a).) “[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission.” (Code Civ. Proc., § 2033.290, subd. (c).) Moreover, “[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2033.290, subd. (b)(1).)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd.

(a).) “Misuses of the discovery process

include ... (d) Failing to respond or to submit to an authorized method of discovery. (h) Making or opposing, unsuccessfully and

without substantial justification, a motion to compel or to limit discovery.” (Code Civ. Proc., § 2023.010, subds. (d), (h).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Farzad is required to meet and

confer with Defendant before filing these motions. (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2031.310, subd. (b)(2), 2033.290, subd. (b)(1).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration “in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “ ‘The parties must present

to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a 'sincere' effort to resolve the matter.' " (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On April 17, 2026, Farzad's counsel sent an email to Defendant's counsel stating, "Please advise if/when substantive responses can be expected." (FROG Thomas Decl., ¶ 10, Exh. D; SROG Thomas Decl., ¶ 10, Exh. D; RPD Thomas Decl., ¶ 10, Exh. D; RFA Thomas Decl., ¶ 10, Exh. D.) Defendant's counsel did not respond. (FROG Thomas Decl., ¶ 10; SROG Thomas Decl., ¶ 10; RPD Thomas Decl., ¶ 10; RFA Thomas Decl., ¶ 10.)

On May 15, 2026, Farzad's counsel followed up with another email to Defendant's counsel, inquiring, "Following up re substantive responses." (FROG Thomas Decl., ¶ 10, Exh. D; SROG Thomas Decl., ¶ 10, Exh. D; RPD Thomas Decl., ¶ 10, Exh. D; RFA Thomas Decl., ¶ 10, Exh. D.) Defendant's counsel did not respond. (FROG Thomas Decl., ¶ 10; SROG Thomas Decl., ¶ 10; RPD Thomas Decl., ¶ 10; RFA Thomas Decl., ¶ 10.)

The Court finds that Farzad did not adequately meet and confer in accordance with Code of Civil Procedure section 2016.040. Farzad failed to meet in person, by telephone, or via video conference to discuss the issues at hand. Notably, Farzad did not send Defendant a single meet-and-confer letter to address the deficiencies in Defendant's responses. Instead, Farzad's counsel sent only two emails inquiring whether Defendant would provide substantive responses. Consequently, the Court does not consider this a sufficient attempt to meet and confer prior to bringing these motions.

Farzad seeks to avoid the conclusion by arguing that "[t]his is exactly the scenario envisioned by the court in Obregon v. Superior Court

(1998) 67 Cal.App.4th 424, 432, which noted 'A single letter, followed by a response which refuses concessions, might in some instances be an adequate attempt at informal resolution, [especially] when a legitimate discovery objective is demonstrated.' " (FROG MTCF, pp. 2:28-3:3; SROG MTCF, pp. 2:28-3:3; RPD MTCF, pp. 2:28-3:3; RFA MTCF, pp. 2:28-3:3.) However, the Court disagrees.

Initially, the Court observes that the ruling in Obregon v. Superior Court occurred prior to the newest enactment of Code of Civil Procedure section 2016.040, which requires parties to "show[] a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040.) Consequently, a solitary letter is no longer deemed sufficient.

Moreover, Farzad failed to provide a meet-and-confer letter; rather, Farzad requested updates on substantive responses. Additionally, there was no response indicating a refusal of concessions. Therefore, the precedent established in Obregon v. Superior Court is not applicable in this instance and does not absolve Farzad from his obligation to meet and confer pursuant to Code of Civil Procedure section 2016.040.

Accordingly, the Court DENIES Farzad's motions to compel further responses and the accompanying requests for monetary sanctions.

ORDERS

1) Plaintiff

Tanaz Farzad's Motion to Compel Further Responses to Plaintiff's First Set of Form Interrogatories is DENIED.

2) Plaintiff

Tanaz Farzad's Motion to Compel Further Responses to Plaintiff's First Set of Special Interrogatories is DENIED.

3) Plaintiff

Tanaz Farzad's Motion to Compel Further Responses to Plaintiff's First Set of Requests for Production of Documents is DENIED.

4) Plaintiff

Tanaz Farzad's Motion to Compel Further Responses to Plaintiff's First Set of Requests for Admission is DENIED.

5) Plaintiff

Tanaz Farzad's Requests for Monetary Sanctions are DENIED.

6) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 3, 2026

Tamara
Hall

Judge
of the Superior Court